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Case No:

26NNCV01697

Hearing Date: 08/27/2026 – 8:30 a.m.

Trial

Date: UNSET

Case Name:

CHERYL ASADA; JEFFREY ASADA v. RK INDUSTRIES GROUP, INC.; RANDALL M. KIMURA;
and DOES 1 to 20, inclusive

TENTATIVE RULING ON DEMURRER

PROCEDURAL

Moving Party: Defendants – (1) RK Industries Group, Inc., and (2)

Randall M. Kimura

Responding Party: Plaintiffs, Cheryl Asada and Jeffrey Asada

Moving Papers: Notice/Demurrer;

Proposed Order

Opposition Papers: Opposition

Reply Papers: Reply

RELIEF REQUESTED

Defendants – (1) RK Industries Group, Inc., and (2) Randall M. Kimura – demur to the fourth and fifth causes of action in the FAC on the grounds that the fourth and fifth causes of action fail to state facts sufficient to constitute a cause of action [CCP § 430.10(e)].

MEET & CONFER

“Before filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. If an amended complaint, cross-complaint, or answer is filed, the responding party shall meet and confer again with the party who filed the amended pleading before filing a demurrer to the amended pleading. ” (CCP, § 430.41(a).)

Failure to sufficiently meet and confer is not grounds to overrule or sustain a demurrer. (CCP, § 430.41(a)(4).)

Here, Defendants' counsel alleges that a meet and confer occurred. (See Phelps Decl., ¶¶ 2-5.)

LEGAL STANDARDS FOR DEMURRERS

Demurrer – Sufficiency

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda, (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.) The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law” (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.)

A demurrer tests the pleadings alone and not the evidence or other extrinsic matters; therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed.

(Code Civ. Proc., §§ 430.30, 430.70.) The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action. (Hahn, *supra*, 147 Cal.App.4th at 747.)

The general rule is that the plaintiff need only allege ultimate facts, not evidentiary facts. (Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 550.) “All that is required of a plaintiff, as a matter of pleading ... is that his complaint set forth the essential facts of the case with reasonable precision and with sufficient particularity to acquaint the defendant with the nature, source and extent of his cause of action.” (Rannard v. Lockheed Aircraft Corp. (1945) 26 Cal.2d 149, 156-157.)

On demurrer, a trial court has an independent duty to “determine whether or not the ... complaint alleges facts sufficient to state a cause of action under any legal theory.” (Das v. Bank of America, N.A. (2010) 186 Cal.App.4th 727, 734.)

Demurrers do not lie as to only parts of causes of action, where some valid claim is alleged but “must dispose of an entire cause of action to be sustained.” (Poizner v. Fremont General Corp. (2007) 148 Cal.App.4th 97, 119.) “Generally it is an abuse of discretion to sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment.” (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.)

Demurrer – Uncertainty

A special demurrer for uncertainty, CCP section 430.10(f), is disfavored and will only be sustained where the pleading is so bad that defendant cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him/her. (Khoury v. Maly's of Calif., Inc. (1993) 14 Cal.App.4th 612, 616.) Moreover, even if the pleading is somewhat vague, “ambiguities can be clarified under modern discovery procedures.” (Ibid.)

TENTATIVE RULING DEMURRER

Plaintiffs, Cheryl Asada and Jeffrey Asada, filed the original complaint on 3/9/2026.

Plaintiffs filed the First Amended Complaint (FAC) against Defendants – (1) RK Industries Group, Inc., and (2) Randall M. Kimura – on 6/1/2026.

The FAC alleges six causes of action for: (1) Cancellation of Unlawful Contract Drafted in Violation of the Home Improvement Contract Statutes; (2) Breach of Contract; (3) Negligence – Breach of Duty to Perform Work in Good and Competent Manner; (4) Fraudulent Misrepresentation and Concealment; (5) Extortion and Theft under Penal Code § 496; and (6) Violations of the Unfair Competition Law (Bus. & Prof. Code § 17200).

In general, this action appears to pertain to a dispute between Plaintiffs and Defendants in relation to Plaintiffs contracting with Defendants so that Defendants would perform home improvement work/remodel Plaintiffs' home.

Defendants demur to the fourth [fraudulent misrepresentation and concealment] and fifth [extortion and theft under penal code § 496] causes of action based on failure to state facts sufficient to constitute a cause of action.

By
and large, the parties' papers are unhelpful to the Court.

Defendants'
moving papers border on incomprehensibility; and Plaintiffs' papers are not much better.

For
most Defendants' arguments, the Court is unclear as to why they are relevant or what they have to do with the pleading standard for the instant causes of action.

For
example, with respect to the fourth cause of action, Defendants argue that Plaintiffs plead a dispute over entitlement to payment for extra work. Defendants further

argue that the FAC does not allege that no additional work was performed. Further, Defendants argue that the FAC alleges that Plaintiffs did not authorize it.

The

Court is unclear what the arguments that Defendants assert have to do with the pleading standard for fraudulent misrepresentation/fraudulent concealment.

Defendants

also argue that the damages that Plaintiffs seek are contractual; however, this argument makes no sense to the Court because the fourth and fifth causes of action pertain to causes of action that are not for breach of contract.

“ ‘The

elements of fraud, which gives rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or “scienter”); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.’ ” (Small v. Fritz Companies, Inc. (2003) 30 Cal.4th 167, 173 citing Lazar v. Superior Court (1996) 12 Cal.4th 631, 638.)

Fraud must be pleaded with specificity rather than with “general and conclusory allegations.” (Small v. Fritz Companies, Inc. (2003) 30 Cal.4th 167, 184.) The specificity requirement means a plaintiff must allege facts showing how, when, where, to whom, and by what means the representations were made, and, in the case of a corporate defendant, the plaintiff must allege the names of the persons who made the representations, their authority to speak on behalf of the corporation, to whom they spoke, what they said or wrote, and when the representation was made. (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645.)

The pleading standard for fraudulent concealment appears to be as follows:

“[T]he elements of an action for fraud and deceit based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4)

the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (Hahn v. Mirda (2007) 147 Cal.App.4th 740,748.) “Fraud must be pleaded with specificity rather than with “general and conclusory” allegations.” (Small v. Fritz Companies, Inc. (2003) 30 Cal.4th 167, 184.)

(Boschma v. Home Loan Center, Inc. (2011) 198 Cal.App.4th 230, 248.)

With respect to the fourth cause of action for “Fraudulent Misrepresentation and Concealment,” the Court will hear argument. Since neither party explains their arguments in a comprehensible manner, the Court expects the parties to explain how the elements of the fourth cause of action were, or were not alleged, based on the pleading standard for the instant cause of action. The Court expects the parties to point to the pleading standard for the fourth cause of action, and the Court expects the parties to point to specific paragraphs that do, or do not contain, the relevant allegations.

With respect to the fifth cause of action for “extortion and theft under penal code section § 496,” the Court will hear argument.

“Any person who has been injured by a violation of subdivision (a) or (b) may bring an action for three times the amount of actual damages, if any, sustained by the plaintiff, costs of suit, and reasonable attorney’s fees.” (Penal Code, § 496(c).)

Under Penal Code § 496(a)-(b):

(a) Every person who buys or receives any property that has been stolen or that has been obtained in any manner constituting theft or extortion, knowing the property to be so stolen or obtained, or who conceals, sells, withholds, or aids in concealing, selling, or withholding any property from the owner, knowing the property to be so stolen or obtained, shall be punished by imprisonment in a county jail for not more than one year, or imprisonment pursuant to subdivision (h) of Section 1170. However, if the value of the property does not exceed nine hundred fifty dollars (\$950), the offense

shall be a misdemeanor, punishable only by imprisonment in a county jail not exceeding one year, if such person has no prior convictions for an offense specified in clause (iv) of subparagraph (C) of paragraph (2) of subdivision (e) of Section 667 or for an offense requiring registration pursuant to subdivision (c) of Section 290.

A principal in the actual theft of the property may be convicted pursuant to this section. However, no person may be convicted both pursuant to this section and of the theft of the same property.

(b) Every swap meet vendor, as defined in Section 21661 of the Business and Professions Code, and every person whose principal business is dealing in, or collecting, merchandise or personal property, and every agent, employee, or representative of that person, who buys or receives any property of a value in excess of nine hundred fifty dollars (\$950) that has been stolen or obtained in any manner constituting theft or extortion, under circumstances that should cause the person, agent, employee, or representative to make reasonable inquiry to ascertain that the person from whom the property was bought or received had the legal right to sell or deliver it, without making a reasonable inquiry, shall be punished by imprisonment in a county jail for not more than one year, or imprisonment pursuant to subdivision (h) of Section 1170.

Every swap meet vendor, as defined in Section 21661 of the Business and Professions Code, and every person whose principal business is dealing in, or collecting, merchandise or personal property, and every agent, employee, or representative of that person, who buys or receives any property of a value of nine hundred fifty dollars (\$950) or less that has been stolen or obtained in any manner constituting theft or extortion, under circumstances that should cause the person, agent, employee, or representative to make reasonable inquiry to ascertain that the person from whom the property was bought or received had the legal right to sell or deliver it, without making a reasonable inquiry, shall be guilty of a misdemeanor.

(Penal Code, § 496(a)-(b).)

With respect to the fifth cause of action for “extortion and theft under penal code section § 496,” the Court will hear argument. Since neither party explains their arguments in a comprehensible manner, the Court expects the parties to explain how the elements of the fifth

cause of action were, or were not alleged, based on the pleading standard for the instant cause of action. The Court expects the parties to point to the pleading standard for the fifth cause of action, and the Court expects the parties to point to specific paragraphs that do, or do not contain, the relevant allegations.

If the Court were to sustain the demurrer, the Court would be inclined to grant leave to amend.